

Narayan Das v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 December 2022 · WRIT - C No. 34361 of 2022 · **Writ disposed; petitioner relegated to clause 6.5; demand stayed two months**

HEADNOTE

A writ raising a dispute over computation of electricity charges is disposed of by relegating the consumer to an objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The demand notice dated 15 October 2022 is kept in abeyance for two months or until that decision, whichever is earlier, if the objection is filed within two weeks.

FACTUAL SUMMARY

Narayan Das invoked the Allahabad High Court's writ jurisdiction against the State of Uttar Pradesh and electricity authorities, disputing the computation of electricity charges on a connection taken by him. The controversy centred on a demand notice dated 15 October 2022. He had not first placed an objection before the Executive Engineer under the Electricity Supply Code, 2005. Counsel for the petitioner and for respondents 3 and 4 were heard. The Court did not examine the correctness of the demand on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed computation of charges

HOLDING

A dispute as to computation of electricity charges is to be raised by objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The writ is disposed of on the footing that the petitioner shall file such an objection within two weeks; the Executive Engineer shall decide it expeditiously, dealing with all points of objection, preferably within four weeks of receipt. The demand notice dated 15.10.2022 remains in abeyance for two months or until that decision, whichever is earlier; default in filing the objection leaves the respondents free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ on computation of charges is disposed of because the statutory objection before the Executive Engineer under paragraph 6.5 is the appropriate remedy. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A dispute about computation of electricity charges, including the demand notice dated 15.10.2022, is channelled to paragraph 6.5 rather than decided on the writ. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The petitioner is directed to file an objection before the Executive Engineer under paragraph 6.5 within two weeks; the Engineer must decide all points preferably within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE COMPUTATION OF ELECTRICITY CHARGES AND OF THE DEMAND NOTICE DATED 15.10.2022

Left to the Executive Engineer on a clause 6.5 objection; the demand is only kept in abeyance pending that decision. ¶ 1

